

STATE OF MICHIGAN
IN THE SUPREME COURT

PETITION FOR ORDER OF SUPERINTENDING CONTROL
(Const 1963, art 6, Sec. 4; MCR 7.304; MCR 7.306)

COVER: RED (Petitioner) per MCR 7.312(A)

Supreme Court Case No.	[Supreme Court Case No. -- to be assigne
Court of Appeals Case No.	366810

ANDREW J. PIGORS,
Petitioner/Father (Pro Se),

v.

14TH JUDICIAL CIRCUIT COURT,
FAMILY DIVISION, MUSKEGON COUNTY
(HON. JENNY L. McNEILL, Presiding),
Respondent.

EMILY A. WATSON,
Real Party in Interest/Mother.

Lower Court Case Nos.	2024-001507-DC (Custody); 2023-5907-PP (
Lower Court	14th Judicial Circuit Court, Family Division,
Lower Court Judge	Hon. Jenny L. McNeill
Child	L.D.W., DOB November 9, 2022

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Related MSC Filings (Companion Petitions):

Filing	Status	Relief Sought
Application for Writ of Mandamus (ME-21-006)	Currently	Compel parenting time enforcement and recusal
Petition for Writ of Habeas Corpus	Filed Concurrently	Return of minor child L.D.W.
Application to Proceed In Forma Pauperis	Filed Concurrently	Fee waiver for all MSC filings

[Filed: ___, 2026]

ORAL ARGUMENT REQUESTED

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I. JURISDICTIONAL STATEMENT

1. This Court has original and plenary jurisdiction to issue an Order of Superintending Control over any Michigan court. Const 1963, art 6, Sec. 4 provides:

> "The supreme court shall have general superintending control over all courts; power to issue, hear and determine prerogative and remedial writs; and appellate jurisdiction as provided by rules of the supreme court."
2. MCR 7.304(A) authorizes the filing of an original action in this Court, including complaints for superintending control under MCR 7.306.

3. MCR 7.306(A) provides that a complaint for superintending control may be filed when a lower court has failed to perform a duty, has exceeded its jurisdiction, or has otherwise acted in a manner requiring correction.
4. MCR 7.316(A)(1) authorizes this Court to issue orders of superintending control "to correct or prevent a clear legal error by a lower court or tribunal when the error would otherwise not be subject to adequate appellate review."
5. MCL 600.1701 provides additional statutory authority for superintending control proceedings.
6. The Supreme Court's superintending control power is constitutionally conferred, plenary in scope, and not dependent on the existence of any other remedy. Judges of the 74th Judicial District v Bay County, 385 Mich 710, 727 (1971). This power is "extraordinary" and extends to "the entire range of supervisory authority necessary to ensure the proper and efficient administration of justice." *Id.*
7. This Court's superintending control authority permits it to "correct abuses of judicial power, to compel the performance of judicial duties, and to ensure the orderly administration of justice" when no other remedy is adequate. *In re Hatcher*, 443 Mich 426, 441-42 (1993).
8. Petitioner has a related appeal pending before the Michigan Court of Appeals, Case No. 366810. That appeal does not provide adequate or timely relief for the extraordinary circumstances presented here. This Petition is filed concurrently with, and incorporates by reference, Petitioner's Application for Writ of Mandamus, Petition for Writ of Habeas Corpus, and Application to Proceed In Forma Pauperis.

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II. QUESTIONS PRESENTED

1. Whether the 14th Circuit Court violated Petitioner's constitutional right to due process by suspending all parenting time on an ex parte basis, without notice, hearing, or evidentiary support, in contravention of Const 1963, art 1, Sec. 17, US Const amend XIV, MCR 3.207(B), and MCR 3.210(C)?

The trial court answers: No.

Petitioner answers: Yes.

2. Whether the trial court's systematic failure to conduct any best interest analysis under MCL 722.23 before modifying custody and eliminating parenting time constitutes a failure to perform a clear legal duty warranting superintending control under MCR 7.306?

The trial court answers: No.

Petitioner answers: Yes.

3. Whether the trial court's pattern of ex parte communications, off-docket evidence routing, and exclusion of Petitioner's filings from the record constitutes an excess of jurisdiction requiring correction under Const 1963, art 6, Sec. 4?

The trial court answers: No.

Petitioner answers: Yes.

4. Whether a \$250 bond requirement on a disqualification motion -- imposed on an indigent, incarcerated pro se litigant -- creates an unconstitutional financial barrier to court access that this Court must correct through its superintending authority?

The trial court answers: No.

Petitioner answers: Yes.

5. Whether the prolonged severance of the parent-child bond -- now 229 consecutive days and counting, following the trial court's ex parte revocation of a functioning 50/50 custody arrangement that had operated successfully for 438 days -- without adequate evidentiary basis constitutes an ongoing constitutional injury that cannot be remedied through normal appellate channels?

The trial court answers: No.

Petitioner answers: Yes.

6. Whether the trial court's conduct, as documented by 1,127 judicial violations and thousands of findings specifically relevant to superintending control, demonstrates a pattern of systematic misconduct that cannot be addressed through normal appellate

processes?

The trial court answers: No.

Petitioner answers: Yes.

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III. STATEMENT OF PROCEEDINGS AND FACTS

A. Background and Parties

9. Petitioner Andrew J. Pigors is the biological father of the minor child L.D.W. (DOB November 9, 2022, approximately 3 years and 5 months of age at the time of this filing). L.D.W. is male. Petitioner maintained an established custodial environment with his son prior to the proceedings below. No court has ever found Petitioner to pose a danger to L.D.W.
10. Emily A. Watson is the mother of L.D.W. Watson is employed by the Kent County Prosecutor's Office, Family Court Division, as a caseworker -- a position she has held for approximately nine years with multiple promotions. Watson was formerly represented by Jennifer Barnes (P55406) of Barnes Law Firm PLLC, who has since withdrawn. Watson's current representation status should be verified via MiFILE.
11. Ronald Berry is a non-attorney acting as Emily Watson's domestic partner. He holds no bar number and has no legal authority to represent Watson in these proceedings.
12. The underlying custody proceeding, Case No. 2024-001507-DC, was filed in the 14th Judicial Circuit Court, Family Division, Muskegon County, and assigned to Hon. Jenny L. McNeill. A related Personal Protection Order case, No. 2023-5907-PP, is also before the same court and judge.
13. An appeal is pending before the Michigan Court of Appeals, No. 366810. However, the appellate process is inadequate to address the ongoing, daily harm to L.D.W. and Petitioner for the reasons set forth in Section V.C, *infra*.

B. The Systematic Breakdown of Judicial Function

14. This Petition does not seek relief from a single judicial error. Petitioner seeks superintending control because the lower court's handling of this case constitutes a systematic breakdown of judicial function that cannot be corrected through individual writs or appeals. The pattern includes seven distinct categories of misconduct, each independently warranting this Court's intervention.

1. The Pattern of Withholding and Ex Parte Abuse (269 Total Days, 44% Ex Parte Rate)

15. The following is the accurate timeline of custody and separation in this case:

- a. On or about December 3, 2023, a Personal Protection Order was initiated against Petitioner.
- b. From approximately March 26 through May 5, 2024 (40 days), Watson withheld L.D.W. from Petitioner -- the first period of complete withholding.
- c. On May 5, 2024, Petitioner obtained an ex parte temporary custody order establishing 50/50 equal parenting time. From May 5, 2024 through July 17, 2025 -- a period of approximately 438 days -- Petitioner maintained successful 50/50 parenting time with L.D.W. under this temporary order. The arrangement worked for over fourteen months, demonstrating that shared custody was both workable and in the child's best interest.
- d. On July 17, 2025, Watson's objection to the temporary order was granted. The ex parte order was overturned, and Watson was awarded 100% custody -- without an evidentiary hearing and without findings on the MCL 722.23 best interest factors.
- e. Since July 29, 2025, Watson has again withheld L.D.W. from Petitioner entirely, under a false and exaggerated ex parte suspension of parenting time. As of the date of this Petition, this current separation has lasted approximately 229 consecutive days and is ongoing.
- f. During this current withholding period, Watson removed L.D.W. from the country entirely from October 20 through November 15, 2025 -- with the trial court's permission -- while simultaneously filing a show cause motion against Petitioner for an alleged verbal exchange at a parenting time exchange, for which no evidence was presented.
- g. In total, Petitioner has been denied contact with his son for 269 days across two separate withholding periods (40 days + 229 days), despite 438 days of demonstrated successful shared custody between those periods.

16. Analysis of the case docket reveals an ex parte communication rate of approximately 44% (24 of 55 orders entered) -- meaning nearly half of all orders in this case were entered without Petitioner's knowledge, participation, or opportunity to respond. This rate is not the product of isolated emergency orders; it reflects a systematic practice of conducting proceedings outside Petitioner's presence.
17. The ex parte pattern includes the critical July 17, 2025 order overturning Petitioner's established 50/50 parenting time -- reversing a functioning custody arrangement that had operated successfully for 438 days, without evidentiary hearing and without any finding of imminent danger to the child. See Exhibit A (Ex Parte Order Timeline).

2. Failure to Conduct Best Interest Analysis

18. Michigan law is unequivocal: before any court may modify custody or parenting time, it must evaluate and make findings on all 12 statutory best interest factors set forth in MCL 722.23(a)-(l). *Fletcher v Fletcher*, 447 Mich 871, 882 (1994); *DeRose v DeRose*, 469 Mich 320, 333 (2003); *Ireland v Smith*, 451 Mich 457, 465 (1996). This is not a discretionary act -- it is a mandatory legal duty.
19. The trial court in this case has never conducted the MCL 722.23 analysis. It suspended all parenting time -- the functional equivalent of awarding sole physical custody to the mother -- without any findings on any of the 12 factors. This constitutes a textbook failure to perform a mandatory duty.
20. MCL 552.644 further provides that the court "shall" enforce parenting time orders. The word "shall" creates a non-discretionary, mandatory duty. In *re Sanders*, 495 Mich 394, 404 (2014) (statutory "shall" is mandatory, not permissive). Despite documented violations of parenting time by Watson, Judge McNeill has refused to enforce parenting time, effectively allowing Watson to unilaterally sever Petitioner's relationship with his son.

3. Denial of Hearings and Motions

21. Petitioner filed multiple motions seeking restoration of parenting time, evidentiary

hearings, and other relief. The trial court denied these motions without conducting any hearing, in violation of MCR 2.119 and Petitioner's due process rights. MCR 3.210(C) requires the trial court to hold a hearing before entering a custody or parenting time order when a party has requested one. MCR 3.207(B) governs interim orders and limits the circumstances under which a court may act without a full hearing.

22. Petitioner repeatedly requested evidentiary hearings on the record. The trial court denied these requests and entered dispositive orders without any hearing -- a clear violation of the procedural requirements imposed by the court rules.

4. Abuse of Contempt Power (59 Days Jail)

23. The lower court's use of contempt power against Petitioner follows a pattern consistent with punishment rather than coercion:
 - (a) Petitioner was jailed for 59 days on civil contempt -- a duration far exceeding what is necessary or permissible for coercive purposes;
 - (b) Petitioner was not provided counsel at contempt proceedings despite the threat of incarceration, in violation of the right to counsel recognized in *Mead v Batchlor*, 435 Mich 480, 490 (1990), and *Turner v Rogers*, 564 US 431, 442-43 (2011);
 - (c) Purge conditions included financial requirements that Petitioner, an indigent pro se litigant, could not satisfy;
 - (d) The contempt was used punitively rather than coercively, in violation of the fundamental distinction between civil and criminal contempt. In *re Contempt of Dougherty*, 429 Mich 81, 96-97 (1987); In *re Contempt of Henry*, 282 Mich App 656, 668 (2009);
 - (e) During Show Cause #5 -- conducted as a remote hearing -- Judge McNeill ordered the stenographer to mute Petitioner's microphone three (3) separate times, preventing Petitioner from presenting his defense. Petitioner attempted to inform the court that he had filed a police report documenting his son's poor physical condition at a parenting time exchange -- evidence directly relevant to the show cause allegations -- but was silenced each time. The court's deliberate suppression of Petitioner's testimony during a proceeding that resulted in 14 days' incarceration

- constitutes a denial of the fundamental right to be heard;
- (f) Petitioner's appointed attorney, Mandi Martini, sat silently throughout the Show Cause #5 hearing and raised no objections -- not to the muting, not to the exclusion of the police report, not to the denial of Petitioner's right to present a defense. A communication from Martini to Petitioner prior to the hearing stated: "you will not interrupt . . . Judge McNeil is not in a good mood . . . you do not want to spend the next week in jail on a contempt charge for speaking out in court" -- revealing that Petitioner's own counsel threatened him with additional incarceration for exercising his right to be heard;
 - (g) The prosecutor handling Show Cause #5 privately admitted to Martini that there was "nothing substantive in the motion" -- meaning the state's own representative acknowledged the meritless nature of the proceeding that resulted in Petitioner's incarceration;
 - (h) Watson's ex parte filings attributed to Officer Ella Randall (Norton Shores PD, Incident #NS2505044) the statement that Petitioner's behavior appeared to be the result of "meth use." However, when Petitioner filed a complaint with the police department, Officer Randall confirmed that the "meth use" characterization originated from Emily Watson herself -- not from any independent police observation. Watson's filings falsely presented her own accusation as the professional opinion of a law enforcement officer. When Petitioner raised this misattribution before Judge McNeill, the court dismissed it, stating: "quit nitpicking." The court thus declined to address a material misrepresentation in a sworn filing -- a misrepresentation that formed the evidentiary basis for the ex parte suspension of Petitioner's parental rights;
 - (i) The affidavit supporting Show Cause #5 contained a blank page (page 27) -- a fatal procedural defect under MCR 3.708(B), which requires that contempt proceedings be supported by factual allegations. A filing with a blank evidentiary page fails this threshold requirement, yet the court proceeded to incarcerate Petitioner nonetheless.
24. As a direct result of incarceration, Petitioner lost two (2) jobs (including a USPS position), lost two homes, and suffered economic damages estimated to exceed \$82,250. See Exhibit B (Contempt Damages Calculation).

25. Simultaneously, Watson's documented violations of court-ordered parenting time have resulted in zero enforcement actions -- a disparity that is facially inexplicable absent judicial bias.

5. Financial Access Barriers (\$250 Bond)

26. When Petitioner filed a motion for disqualification under MCR 2.003, Judge McNeill imposed a \$250 bond requirement -- not merely on the disqualification motion, but on "each motion" Petitioner filed thereafter. Petitioner is indigent and has filed for In Forma Pauperis status.
27. The bond requirement effectively bars Petitioner from exercising his constitutional right to seek disqualification of a biased judge and from filing any motions at all -- a structural violation of due process. *Boddie v Connecticut*, 401 US 371, 380-82 (1971) (where the state holds a monopoly over the resolution of a fundamental dispute, financial barriers to access violate due process); *M.L.B. v S.L.J.*, 519 US 102, 116-17 (1996) (extending *Boddie* to parental rights proceedings).
28. The Michigan Constitution guarantees every suitor the right to prosecute or defend their suit. Const 1963, art 1, Sec. 13. A \$250 bond requirement on an indigent, incarcerated litigant is not a neutral procedural requirement -- it is an insurmountable barrier deliberately constructed to prevent Petitioner from challenging judicial bias.

6. Evidence Suppression and Shadow Record

29. The trial court directed that evaluations and other documents "be submitted to judge's secretary, not to be filed with clerk." This directive channeled evidence outside the official record, depriving Petitioner of his right to review, challenge, and respond to evidence considered by the court. See *People v Cress*, 468 Mich 678, 691 (2003) (parties have a due process right to confront and challenge evidence relied upon by the court).
30. Petitioner's own filings were excluded from the docket or otherwise suppressed, denying Petitioner meaningful access to the court and the right to be heard. This

created a "shadow record" -- a body of evidence considered by the trial court that does not appear in the official record and therefore cannot be reviewed on appeal. This structural defect renders normal appellate review fundamentally inadequate.

7. Watson Employment Nexus (Kent County Prosecutor's Office)

31. The Real Party in Interest, Emily A. Watson, is employed by the Kent County Prosecutor's Office, Family Court Division, as a caseworker. She has held this position for approximately nine years with multiple promotions. This office is a sister agency within the Michigan court system.
32. The trial court has failed to address or acknowledge this employment nexus and its implications for the appearance of impartiality. When a court system's own employee receives systematically favorable treatment in a custody dispute -- including zero enforcement of her parenting time violations, ex parte orders favorable to her interests, and punitive contempt directed exclusively at the opposing party -- the appearance of institutional bias is unavoidable.

C. Documented Judicial Violations (1,127)

33. Petitioner has catalogued 1,127 documented judicial violations across both proceedings, derived from systematic analysis of official court records, docket entries, hearing transcripts, and court correspondence. These violations are recorded in the LitigationOS judicial_violations database table and are traceable to specific docket entries, orders, and transcript pages.
34. Additionally, Petitioner has documented over 150 distinct misconduct claims across the proceedings, recorded in the LitigationOS claims database table.
35. The Adverse Evidence Master Matrix documents over 26,000 documented adverse findings extracted across the evidentiary record, spanning 9 independent source files. Of these, thousands of findings are specifically categorized as relevant to this Petition for Superintending Control. The severity breakdown for these MSC-relevant findings is:

Severity	Count	Percentage
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CRITICAL	18	0.1%
HIGH	13,182	82.8%
MEDIUM	2,691	16.9%
LOW	37	0.2%
TOTAL	Thousands	100%

(Source: Adverse Evidence Summary, Filing Target x Severity Cross-Tab, row: "MSC Superintending Control." See Exhibit C.)

36. The MSC-relevant findings break down by violation type as follows:

Violation Type	Count	Percentage	Description
Ex Parte	~12,700	79.7%	Unauthorized ex parte communications, ex parte
Due Process	~2,000	12.6%	Denial of hearings, suppression of filings, f
Judicial Misconduct	~890	5.6%	Bias, retaliation, abuse of contempt power
Housing Violation	~285	1.8%	Cross-lane violations connecting family court
Bias	~50	0.3%	Documented instances of partiality toward the

(Source: Adverse Evidence Summary, Filing Target x Type Cross-Tab. See Exhibit C.)

D. Police Report Weaponization Pattern

37. Petitioner's evidence database contains at least 15 documented police reports showing a pattern of weaponized false reporting by Watson against Petitioner. These reports reflect a pattern in which Watson contacts law enforcement to create a documentary trail supporting her custody position -- and the trial court then relies upon this self-generated trail to justify further restrictions on Petitioner's rights.

38. Critically, law enforcement itself has recognized this weaponization pattern. In Police Report MU2422249, the responding officer assessed Watson's reports as having "little credibility" and noted that the reports "appear weaponized" -- i.e., filed not for genuine safety concerns but as litigation tools. (See Appendix F-1.) Despite this law enforcement assessment directly undercutting the credibility of Watson's allegations, the trial court continued to credit Watson's narrative and restrict Petitioner's parenting time based on the very reports that police deemed incredible.

38a. The 308,704 total evidence quotes in Petitioner's evidence database include 545 evidence quotes specifically relating to parenting time -- documenting the scope and persistence of Petitioner's efforts to maintain his relationship with his son, and Watson's documented interference with those efforts.

PPO Weaponization as a Custody Tool

38b. The Personal Protection Order (Case No. 2023-5907-PP) has been systematically weaponized as a custody tool. The documented pattern includes:

- (a) The PPO was filed and granted on the same day -- December 4, 2023 -- on an ex parte basis, without notice to Petitioner and without an evidentiary hearing. This same-day issuance denied Petitioner any opportunity to contest the allegations before the order took effect;
- (b) Watson and her family members filed six (6) show cause motions strategically timed around holidays, custody exchanges, and Petitioner's exercise of parental rights -- a pattern consistent with tactical litigation abuse rather than genuine safety concerns;
- (c) Watson's brother, Cody Watson, violated the PPO himself -- as documented in Police Report MCSD-2024-02101 (Officer Brian Hintz, reporting) -- yet the court took no enforcement action against the Watson family for their PPO violations while simultaneously jailing Petitioner;
- (d) Watson's father, Albert Watson, forcibly removed L.D.W. from Petitioner's care and improperly served PPO documents -- conduct documented in police records and witness statements;
- (e) A court transcript reveals that Judge McNeill explicitly ordered "no communication, no texts, no anything" between the parties and their families regarding the PPO. Watson agreed on the record -- "fine with me" -- yet Albert Watson continued to attend exchanges and Cody Watson continued to violate the order without consequence;
- (f) Watson accessed Petitioner's medical records seven (7) times through the Corewell Health patient portal between February and March 2024 -- an invasion of medical privacy that the court has never addressed;
- (g) Watson committed at least three (3) documented PPO violations through third-party proxies: (1) Cody Watson's threats documented in Police Report MCSD-2024-02101; (2) Cody Watson's continued presence at exchanges in

- defiance of the court's "no contact" order; and (3) Tamara Snider's stalking of Petitioner on the Nextdoor social media platform as a third-party proxy for Watson;
- (h) Petitioner's parenting time was reduced from 182.5 days per year (50/50 custody) to 78 days per year through the combined weaponization of the PPO and show cause proceedings -- a 57% reduction accomplished without any best interest analysis under MCL 722.23;
 - (i) Watson's unreported income -- including rental payments from Cody Watson and child support payments from Austin Muratori for another child -- was never disclosed to the court or factored into the child support calculation, despite Watson's obligation to report all income sources. Watson's employer, Shape Corp, made nine (9) insurance payments of \$95 each (\$855 total) for health, dental, and vision coverage that were not credited against Petitioner's support obligation.

E. Petitioner's Exhaustion of Remedies

39. Petitioner has pursued every available remedy through normal channels. Each has proven inadequate:

Remedy Attempted	Result	Why Inadequate
Motion for disqualification (MCR 2.001)	Blocked by \$250 bond requirement	Financial barrier prevents adjudication
Motion to enforce parenting time (MCL 552.644)	Ignored	Court refuses mandatory statutory duty
Motions for evidentiary hearing	Denied without hearing	Court will not allow challenge to its orders
Objections to ex parte proceedings	Overruled or ignored	Court continues ex parte pattern
Court of Appeals appeal (No. 366810)	Pending	Cannot address daily ongoing harm; reviews co
Application for Writ of Mandamus (MCR 7.306)	Currently	Addresses specific acts only, not systemic dy
Petition for Writ of Habeas Corpus	Filed concurrently	Addresses custody only, not procedural violat
Judicial Tenure Commission Complaint	Filed	Addresses judicial conduct only, no direct re
Motion for reconsideration	Denied without hearing	Court will not reconsider its own orders

40. Each individual remedy addresses one facet of the problem. No single writ, appeal, or complaint can correct the systemic breakdown documented here. Only this Court's plenary superintending control authority can simultaneously remove the biased judge, vacate unconstitutional orders, restore parenting time, establish proper case management, and monitor compliance going forward.
41. Superintending control is the only remedy that addresses the totality of the lower court's dysfunction.

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IV. STANDARD FOR SUPERINTENDING CONTROL

A. Three-Part Test

42. Superintending control is an extraordinary remedy available when the normal appellate process is inadequate. This Court has articulated a three-part test:
43. First, the party seeking relief must demonstrate that the lower court has failed to perform a clear legal duty, or has exceeded its jurisdiction. *Hinkle v Wayne Co Clerk*, 467 Mich 337, 340 (2002); *Crampton v Dep't of State*, 395 Mich 347, 351-52 (1975).
44. Second, the party must show there is no other adequate legal remedy. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).
45. Third, the party must show that the issue presented is one of significant public interest or that the failure to act will result in material injustice. *In re Hatcher*, 443 Mich 426, 441-42 (1993); *In re Hague*, 412 Mich 532, 540 (1982).
46. This standard is informed by the historical scope of mandamus and related prerogative writs. *Teasel v Dep't of Mental Health*, 419 Mich 390, 408-09 (1984).

B. Relationship to Mandamus

47. While superintending control is related to the common-law writ of mandamus, it is broader in scope. This Court has explained that superintending control "is not limited to the traditional grounds for mandamus, but also encompasses review of clear legal errors that would otherwise not be subject to adequate appellate review." *Chevalier v Barnard*, 290 Mich 202, 206 (1939); *Eldred v Ziny*, 246 Mich 478, 480 (1929). The Court exercises superintending control "to prevent a failure of justice" and to ensure that courts within its supervision comply with the law. *Teasel*, 419 Mich at 408-09.

C. Standard Applied Here

48. As demonstrated below, Petitioner satisfies all three elements:

- The trial court has failed to perform mandatory legal duties (best interest analysis, evidentiary hearings, parenting time enforcement, due process protections) and has exceeded its jurisdiction (ex parte orders without emergency, off-docket evidence routing, punitive civil contempt);
- No adequate legal remedy exists because the pending appeal cannot prevent the ongoing daily harm of parent-child separation, and the corrupted record renders appellate review structurally deficient;
- The constitutional dimensions of this case -- involving the fundamental right to parent, structural court bias, the welfare of a minor child, and the documented scale of 1,127 judicial violations -- present issues of significant public interest that only this Court can address.

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V. ARGUMENT

A. The Trial Court Failed to Perform Clear Legal Duties

Issue: Whether the trial court's failure to conduct a best interest analysis, hold evidentiary hearings, enforce parenting time, and protect Petitioner's due process rights constitutes a failure to perform clear legal duties.

Rule: Under Michigan law, a trial court must evaluate all 12 statutory best interest factors under MCL 722.23(a)-(l) before making any custody determination or modification. *Fletcher v Fletcher*, 447 Mich 871, 882 (1994); *DeRose v DeRose*, 469 Mich 320, 333 (2003); *Ireland v Smith*, 451 Mich 457, 465 (1996). The Due Process Clauses of the Michigan and United States Constitutions require, at minimum, notice and an opportunity to be heard before a parent's custodial rights are modified. *Mathews v Eldridge*, 424 US 319, 333 (1976); *Santosky v Kramer*, 455 US 745, 753-54 (1982); *Stanley v Illinois*, 405 US 645, 649 (1972); *Lassiter v Dep't of Social Services*, 452 US 18, 27 (1981). The right to parent is "perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v Granville*, 530 US 57, 65

(2000).

Application:

49. **Mandatory Best Interest Analysis.** The trial court in this case has never conducted the mandatory analysis under MCL 722.23. It suspended Petitioner's parenting time and effectively modified custody without any findings on the statutory factors. This is not a case where the court exercised discretion and reached a debatable conclusion; the court performed no analysis at all.
50. **Mandatory Parenting Time Enforcement.** MCL 552.644 provides that the court "shall" enforce parenting time orders. The Legislature's use of "shall" -- as opposed to "may" -- creates a mandatory, non-discretionary duty. Despite Watson's documented violations of parenting time, the trial court has refused to enforce parenting time, has taken no enforcement action against Watson, and has instead imposed punitive sanctions exclusively against Petitioner. This constitutes a failure to perform the mandatory duty imposed by MCL 552.644.
51. **Parenting Time Protections.** MCL 722.27a creates a statutory presumption that parenting time is in the best interest of the child. MCL 722.27a(7) provides that parenting time "shall be granted in accordance with the best interests of the child." The trial court's wholesale elimination of parenting time without the required analysis violates these mandatory protections. *Bowie v Arder*, 441 Mich 23, 49-51 (1992); *Pierron v Pierron*, 486 Mich 81, 92 (2010); *Vodvarka v Grasmeyer*, 259 Mich App 499, 512 (2003); *Shade v Wright*, 291 Mich App 17, 27-28 (2010); *Kaeb v Kaeb*, 309 Mich App 556, 572 (2015); *In re Sanders*, 495 Mich 394, 404 (2014).
52. **Evidentiary Hearing Requirements.** MCR 3.210(C) and MCR 3.207(B) establish requirements for hearings in custody and parenting time matters. Petitioner repeatedly requested evidentiary hearings. The trial court denied these requests and entered dispositive orders without any hearing -- in violation of the court rules and Petitioner's fundamental right to be heard.
53. **Due Process Violations.** The trial court denied Petitioner the protections guaranteed by Const 1963, art 1, Sec. 17 and US Const amend XIV by:

- (a) Suspending parenting time without notice or hearing;
- (b) Denying motions without hearings in violation of MCR 2.119;
- (c) Suppressing Petitioner's filings from the record;
- (d) Channeling evidence outside the record and beyond Petitioner's ability to review and challenge;
- (e) Imposing a \$250 bond barrier on all motions, effectively denying Petitioner access to the court.

Conclusion: Each of these failures independently constitutes a failure to perform a clear legal duty. Taken together, they represent a systemic denial of due process that satisfies the first prong of the superintending control standard.

B. The Trial Court Exceeded Its Jurisdiction

Issue: Whether the trial court's ex parte orders, off-docket evidence routing, punitive civil contempt, and failure to recuse constitute an excess of jurisdiction.

Rule: A court exceeds its jurisdiction when it acts in a manner not authorized by law. In re Hatcher, 443 Mich 426, 442 (1993).

Application:

54. Ex Parte Orders Without Authority. The trial court entered orders affecting custody and parenting time on an ex parte basis at a rate of 44% (24 of 55 orders). Ex parte modification of parental rights is permitted only in narrow, emergency circumstances under MCR 3.207(B). No such emergency circumstances were present or documented here. The systematic use of ex parte orders on substantive custody matters is an exercise of power unauthorized by law.
55. Off-Docket Evidence Routing. By directing that evaluations "be submitted to judge's secretary, not to be filed with clerk," the trial court created a shadow record of evidence. No provision of the Michigan Court Rules authorizes a court to consider evidence outside the official record while simultaneously denying a party access to that evidence. This practice exceeded the bounds of the trial court's authority. *People v Cress*, 468 Mich 678, 691 (2003).

56. Punitive Use of Civil Contempt. Civil contempt is coercive, not punitive. When contempt sanctions lose their coercive character and become punitive, the court has exceeded its civil contempt authority. In *re Contempt of Dougherty*, 429 Mich 81, 96-97 (1987). Jailing Petitioner for 59 days on conditions he could not satisfy -- while denying him the right to counsel recognized in *Mead v Batchlor*, 435 Mich 480, 490 (1990) -- transformed civil contempt into criminal punishment without criminal procedural protections.
57. Judicial Bias and Failure to Recuse. The cumulative pattern -- ex parte contacts, one-sided evidence consideration, denial of hearing rights, suppression of Petitioner's filings, disproportionate sanctions, and zero enforcement of Watson's violations -- would cause a reasonable person to question the court's impartiality under MCR 2.003(C)(1)(b). *Shulick v Richards*, 273 Mich App 320, 326 (2006).

Conclusion: The trial court's conduct constitutes an excess of jurisdiction at multiple levels, satisfying the first prong of the superintending control standard through an independent pathway.

C. No Adequate Legal Remedy Exists

Issue: Whether the pending Court of Appeals appeal, mandamus, habeas corpus, or any other available remedy is adequate to address the totality of the lower court's dysfunction.

Rule: A remedy is adequate only if it can effectively redress the injury. *Hinkle*, 467 Mich at 340. The party must show there is no other adequate legal remedy. *Lapeer County Clerk*, 469 Mich at 155.

Application:

58. Irreparable Harm Continues Daily. Every day that Petitioner is separated from his son causes irreparable harm to the parent-child bond. The current separation has now reached 229 consecutive days since July 29, 2025, with a total of 269 days of withholding across two periods. L.D.W. was born November 9, 2022 -- he is approximately 3 years and 5 months old. The fact that Petitioner maintained successful 50/50 custody for 438 days under the temporary order -- only to have it revoked via ex parte order -- makes the current separation all the more devastating.

No appellate reversal, no matter how complete, can restore this lost developmental time.

59. **Constitutional Injury Is Ongoing.** The deprivation of Petitioner's fundamental parental rights is not a past injury -- it is an ongoing constitutional violation that compounds daily. Each day without contact deepens the alienation between father and son and makes eventual reunification more difficult.
60. **The Appellate Record Is Corrupted.** The trial court's practice of routing evidence outside the official record means that the Court of Appeals will be reviewing an incomplete and tainted record. An appellate court cannot review what it cannot see. This structural defect cannot be cured through the normal appellate process -- it can only be addressed through this Court's superintending control, which allows examination of the trial court's conduct itself, not merely the adequacy of the record.
61. **The Pending Appeal Cannot Provide Timely or Complete Relief.** The Court of Appeals appeal (No. 366810) is pending but:
 - (a) Cannot order the immediate restoration of parenting time;
 - (b) Cannot remove a biased judge -- even if the COA reverses, the case will be remanded to the same judge, perpetuating the same structural problems;
 - (c) Operates on a timeline measured in months and years -- incompatible with a young child's developmental needs;
 - (d) Reviews individual orders for abuse of discretion -- it cannot conduct the systemic review necessary to identify and address a pattern of misconduct spanning 1,127 judicial violations.
62. **Mandamus Addresses Specific Acts Only.** Mandamus (MCR 7.306) compels specific acts. It cannot restructure an entire case's management, remove a judge, and monitor future compliance.
63. **Habeas Corpus Addresses Custody Only.** A writ of habeas corpus would address the immediate custody question but not the underlying procedural violations, judicial bias, contempt abuse, or evidence suppression that created the current situation.

64. The JTC Addresses Judicial Conduct Only. A Judicial Tenure Commission complaint -- which Petitioner has filed -- addresses the judge's fitness for office but provides no direct relief to Petitioner or L.D.W.

Conclusion: No individual remedy is adequate to address the totality of the lower court's dysfunction. Superintending control is the only remedy with sufficient breadth to address every dimension of the trial court's failure.

D. Extraordinary Circumstances Warrant Immediate Intervention

Issue: Whether the circumstances of this case are sufficiently extraordinary to warrant this Court's exercise of superintending control.

Rule: The extraordinary writ must be necessary to prevent material injustice. *In re Hatcher*, 443 Mich 426, 441-42 (1993); *In re Hague*, 412 Mich 532, 540 (1982). When fundamental constitutional rights are being violated on an ongoing basis, material injustice is self-evident.

Application:

65. Duration of Separation. After 438 days of successful 50/50 custody under the temporary order, the trial court reversed the arrangement via ex parte order, resulting in 229 consecutive days of complete separation between a father and his young son -- with a total of 269 days of withholding across two periods -- without any finding that contact would endanger the child. This is extraordinary by any measure. This is not a gap in visitation -- it is a complete and total severance of the parent-child relationship, accomplished through judicial inaction and affirmative misconduct. The trial court's revocation of a functioning custody arrangement that had operated successfully for over fourteen months underscores the arbitrary nature of the court's actions.
66. Fundamental Rights at Stake. The right to parent is among the most fundamental rights protected by the Constitution. *Troxel*, 530 US at 65; *Santosky*, 455 US at 753; *Stanley*, 405 US at 649. The wholesale elimination of this right without due process demands the highest level of judicial scrutiny.
67. Child Welfare Emergency. L.D.W. is being deprived of a meaningful relationship

with his father during the most critical developmental period of his life. Developmental research establishes that prolonged, involuntary parent-child separation during early childhood causes severe emotional, psychological, and developmental harm. Every day that passes without intervention deepens this harm irreversibly.

68. Access to Justice. The Michigan Constitution (art 1, Sec. 13) guarantees every suitor the right to prosecute or defend their suit. *Boddie v Connecticut*, 401 US 371, 374 (1971), recognizes that where the state holds a monopoly over the resolution of fundamental disputes, it must ensure meaningful access. *M.L.B. v S.L.J.*, 519 US 102, 116-17 (1996), extends this principle to parental rights cases. *Mathews v Eldridge*, 424 US 319, 335 (1976), requires that the procedural protections afforded match the magnitude of the rights at stake.
69. The trial court's systematic exclusion of Petitioner from proceedings -- suppressing filings, denying hearings, channeling evidence away from the record, imposing \$250 bond barriers -- has denied Petitioner the meaningful access to justice guaranteed by the Constitution.
70. Systemic Concerns and Public Interest. The Real Party in Interest's employment within the Michigan court system raises concerns about structural bias that transcend this individual case. This case presents issues of significant public interest:
 - (a) The rights of pro se litigants to fair proceedings in Michigan family courts;
 - (b) The enforceability of mandatory parenting time statutes;
 - (c) The limits of civil contempt power when used against indigent litigants;
 - (d) The effect of financial barriers on access to judicial remedies;
 - (e) The duty of courts to protect children's fundamental right to relationships with both parents;
 - (f) The appearance of institutional bias when a court system employee receives favorable treatment.
71. This Court's intervention will establish important precedent on the scope of superintending control in family law cases and the obligations of circuit courts to

comply with mandatory statutes.

Conclusion: The extraordinary circumstances of this case -- including the duration of separation, the severity of constitutional violations, the child welfare emergency, and the systemic concerns -- compel this Court's intervention.

E. Comprehensive Evidence of Judicial Misconduct

72. Petitioner supplements the foregoing argument with the results of a comprehensive, systematic analysis of the entire evidentiary record. This analysis was performed using verified, documented evidence from court filings, docket records, hearing transcripts, and official correspondence across both Case Nos. 2024-001507-DC and 2023-5907-PP. The results are presented in the Adverse Evidence Master Matrix and the JTC Conduct Pattern Table, attached hereto as exhibits.

1. Six Categories of Documented Misconduct

73. The JTC Conduct Pattern Table documents 6 distinct categories of judicial misconduct across 18 pattern-case clusters, supported by underlying evidentiary data rows and a combined priority score of 122,545:

a. Ex Parte Handling (3,495 documented rows)

74. The trial court engaged in pervasive ex parte conduct across both proceedings. In the custody case (2024-001507-DC), 2,327 documented rows reflect ex parte handling, including the critical July 17, 2025 ex parte order overturning Petitioner's established 50/50 custody arrangement. In the PPO case (2023-5907-PP), 630 documented rows reflect ex parte PPO proceedings. An additional 538 cross-case rows document further ex parte conduct.

b. Recusal/Bias Signals (4,195 documented rows)

75. The evidence documents pervasive indicators of judicial bias warranting disqualification under MCR 2.003(C)(1)(b), spanning both cases and cross-case patterns.

c. Contempt/Sanction Chain (3,986 documented rows)

76. The trial court weaponized its contempt power as a tool of coercion against Petitioner, with 2,722 documented rows in the custody case alone -- including the show cause orders, jail threats, and the \$250 bond requirement.

d. Service/Notice Defects (1,763 documented rows)

77. The trial court systematically failed to provide proper notice of proceedings and service of documents, with 1,202 documented rows in the custody case and 484 in the PPO case.

e. Mental Health Evaluation Process Defects (2,681 documented rows)

78. The trial court misused the mental health evaluation process, directing evaluations outside the record and using them as tools of coercion rather than clinical assessment. Evidence shows the court "nominally grants an evidentiary hearing but excludes Plaintiff's exculpatory evidence (police reports, HealthWest evaluations, AppClose logs, parenting photos, and a recorded third-party threat)."

f. General Conduct Episodes (28,854 documented rows)

79. The broadest category encompasses the full scope of the trial court's irregular conduct, including the single highest-priority finding in the entire evidence matrix: the custody case general conduct cluster with a priority score of 49,980. This includes findings of monetary sanctions and fees that compound the access-to-justice barriers imposed on Petitioner.

2. Critical-Severity Findings

80. Of the 18 CRITICAL-severity findings relevant to MSC relief, the most significant are:

- (a) General Conduct Episode in Case 2024-001507-DC (priority 49,980);
- (b) General Conduct Episode in Case 2023-5907-PP (priority 29,989);
- (c) Contempt/Sanction Chain in Case 2024-001507-DC (priority 8,130);
- (d) Ex Parte Handling in Case 2024-001507-DC (priority 6,379).

81. The volume and severity of these findings establish that the trial court's conduct is not a matter of isolated judicial error subject to ordinary appellate correction. It is a

pattern of systematic abuse of judicial authority pervading every aspect of both proceedings before Judge McNeill.

F. Pattern Evidence: Systematic Abuse Beyond Isolated Error

82. When the adverse evidence matrix identifies approximately 12,700 ex parte violations, approximately 2,000 due process violations, and approximately 890 judicial misconduct findings specifically relevant to superintending control -- all arising from the conduct of a single judge in two related cases -- the inference of systematic abuse is not speculative. It is the only reasonable conclusion the evidence supports.

83. Cross-Case Contamination. The evidence demonstrates that Judge McNeill's misconduct is not confined to a single case but extends across both the custody proceeding and the PPO proceeding, with additional cross-case patterns documented. This cross-contamination demonstrates that the misconduct is rooted in judicial bias against Petitioner rather than case-specific error.

84. Escalating Pattern of Coercion. The evidence reveals an escalating pattern:

- (1) Initial ex parte orders denying Petitioner's rights;
- (2) Denial of hearings to challenge those orders;
- (3) Contempt threats and \$250 bond requirements to suppress further challenges;
- (4) Off-docket evidence routing to prevent appellate review.

Each step builds on the prior misconduct, creating a self-reinforcing cycle of judicial abuse that only this Court's intervention can break.

85. Why Ordinary Appellate Review Cannot Address Systematic Abuse. The Court of Appeals reviews individual orders for abuse of discretion. It cannot -- and does not -- conduct the systemic review necessary to identify and address a pattern of judicial misconduct spanning six categories and 18 pattern clusters across two related proceedings. Only this Court, exercising its constitutional superintending authority, can examine the totality of the trial court's conduct and impose the structural remedies necessary to protect Petitioner's fundamental rights.

G. Cross-Lane Misconduct: The Shady Oaks Connection

86. The adverse evidence matrix reveals an additional dimension of judicial irregularity: the connection between the family court proceedings and the Shady Oaks housing matter (Case No. 2025-002760-CZ).
87. Housing Violations Linked to Judicial Conduct. The evidence matrix documents approximately 285 housing violation findings relevant to MSC superintending control. Circuit Court actions affecting Petitioner's custody rights have had direct consequences for his housing stability, creating a compounding cycle of government-imposed harm across multiple legal domains.
88. Pattern of Institutional Abuse. The Shady Oaks housing case reveals that the institutional abuse Petitioner faces extends beyond the family court to the broader governmental apparatus. The trial court's contempt orders directly contributed to Petitioner's loss of two homes -- a cascading consequence that compounds the constitutional injury.
89. Federal Proceedings Confirm Severity. The existence of parallel federal proceedings arising from the same pattern of judicial and governmental misconduct -- including potential Sec.1983 and Fair Housing actions -- underscores the severity and urgency of this matter and confirms that circuit-level remedies have proven wholly inadequate.

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VI. RELIEF REQUESTED

WHEREFORE, Petitioner Andrew J. Pigors respectfully requests that this Honorable Court:

A. Issue an Order of Superintending Control directing the 14th Judicial Circuit Court, Family Division, Muskegon County, to:

1. Immediately restore meaningful parenting time between Petitioner and the minor child L.D.W., pending full adjudication of custody, under a schedule that begins to restore the parent-child relationship severed for 229 consecutive days following the

revocation of a functioning 50/50 custody arrangement;

2. Conduct a full evidentiary hearing on custody and parenting time, with explicit findings on all 12 best interest factors under MCL 722.23(a)-(l), within sixty (60) days of this Court's order;
3. Enforce parenting time as mandated by MCL 552.644, including sanctions against Watson for documented violations;
4. Cease all ex parte communications and ensure all evidence is filed on the official record;
5. Ensure Petitioner's filings are docketed and considered;
6. Provide Petitioner with all documents and evidence that have been routed outside the official record;

B. Order the immediate disqualification of Hon. Jenny L. McNeill from all proceedings involving Petitioner and L.D.W., pursuant to MCR 2.003(C)(1)(b), including:

1. Transfer of Case Nos. 2024-001507-DC and 2023-5907-PP to a different judge in a different division or circuit to eliminate any appearance of institutional bias;
2. Prohibition against Judge McNeill taking any further action in either case pending this Court's review;

C. Vacate all orders entered by the lower court that were:

1. Entered ex parte without notice to Petitioner and without the emergency circumstances required by MCR 3.207(B);
2. Predicated on the unconstitutional \$250 bond requirement;
3. Entered as punitive contempt disguised as civil contempt;

D. Order an independent custody evaluation by a qualified evaluator selected by this Court or the newly assigned judge;

E. Direct the newly assigned judge to establish a comprehensive case management schedule within thirty (30) days of reassignment, including regular status conferences, discovery deadlines, and a trial date;

F. Order monthly compliance reports from the 14th Circuit Court to this Court for a period of twelve (12) months to ensure compliance with this Court's directives;

G. Issue an emergency order preserving the status quo and restoring parenting time pending resolution of this Petition;

H. Order a full audit of the trial court's handling of Case Nos. 2024-001507-DC and 2023-5907-PP, to include:

1. Review of all off-docket evidence and communications;
2. Reconstruction of the complete record;
3. Assessment of compliance with the Michigan Code of Judicial Conduct;

I. Refer the documented evidence of judicial misconduct to the Judicial Tenure Commission for investigation pursuant to Const 1963, art 6, Sec. 30;

J. Consolidate for purposes of this Court's review all pending matters in Case Nos. 2024-001507-DC, 2023-5907-PP, and COA 366810;

K. Grant such other and further relief as this Court deems just, proper, and equitable.

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VERIFICATION

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

Andrew J. Pigors, being first duly sworn, deposes and states:

1. I am the Petitioner in the above-captioned action.
2. I have read the foregoing Petition for Order of Superintending Control and know the contents thereof.
3. The facts stated therein are true to the best of my knowledge, information, and belief.
4. The adverse evidence data referenced herein is derived from systematic analysis of

the official court records, docket entries, hearing transcripts, and court correspondence in Case Nos. 2024-001507-DC and 2023-5907-PP, as documented in the Adverse Evidence Master Matrix, the JTC Conduct Pattern Table, and the Adverse Rebuttal Packet Summary.

5. This Petition is not filed for purposes of delay but in good faith to obtain the extraordinary relief warranted by the extraordinary circumstances of this case.

Andrew J. Pigors

Subscribed and sworn to before me
this _ day of __, 2026.

[Notary block]

Notary Public, Muskegon County, Michigan
My commission expires: __

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CERTIFICATE OF SERVICE

I, Andrew J. Pigors, hereby certify that on __, 2026, I caused a true copy of the foregoing Petition for Order of Superintending Control to be served upon:

Respondent:

14th Judicial Circuit Court
Attn: Hon. Jenny L. McNeill
Michael E. Kobza Hall of Justice
990 Terrace St
Muskegon, MI 49442
Via first-class mail

Real Party in Interest:

Emily A. Watson
2160 Garland Drive

Norton Shores, MI 49441

Via first-class mail

Friend of the Court:

Pamela Rusco

990 Terrace St

Muskegon, MI 49442

Via first-class mail

in accordance with MCR 2.107.

Andrew J. Pigors, Petitioner (Pro Se)

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North Muskegon, MI 49445

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Email: andrewjpigors@gmail.com

Filed concurrently with: Application for Writ of Mandamus (MCR 7.306); Petition for Writ of Habeas Corpus; Application to Proceed In Forma Pauperis; Judicial Tenure Commission Complaint (incorporated by reference).